

Full Exposure:

The Revealing Picture of Jewish Engagement with Tattooing¹

Introduction:

Should a Jew tattoo? It is a question whose answer is obvious: yes *and* no. An emphatic ‘no’ may be heard by those Jews who instinctively turn to tradition to resolve all confrontations of modernity, being persuaded by an old wise-tale about a “ban on burial” or by a rabbi’s plea that it is a prohibited practice of Judaism. On the other hand, an affirming ‘yes’ may be heard by those Jews who rely solely upon personal desires to respond to the dilemmas spawned by modernity, overcome by the impetus of “why not,” especially when the act is found to be personally meaningful. At this time, more than any other time in history, more yes’s as well as more no’s can be heard as Jews from all walks of life and from all over the world are confronting and being confronted by the practice of tattooing. Acknowledging this unprecedented moment, Haifa University’s on-line publication of *Anashim Yisrael* (The People of Israel), in an article called “The Tattoo Trend in Sabra Culture,” stated: “In recent years, tattooing has proliferated, both in Israel and abroad. There are people who love tattoos and there are people who are disgusted by them. To each his own. But,” the article’s author, Professor Oz Almog warns, “if you are Jewish, and you are considering getting a tattoo – Stop!”²

1. This thesis could not have been possible without the blessing of education I received from the professors of the Hebrew Union College – Jewish Institute of Religion in Cincinnati, OH. Of special note are my two thesis referees Dr. Nili Fox and Dr. Mark Washofsky. Through their insightful mentorship, this thesis may stand as a reference to the issue of tattooing from a Jewish perspective for the entire Jewish community.

2. Professor Oz Almog. “The Tattoo Trend in Sabra Culture,” Donna Bossin, trans. *Anashim Yisrael*. (Haifa: www.peopleil.org, 20 October 2008).

Stop to consider why this question, “should a Jew tattoo,” is heard in greater frequency today than among the generations of yesterday. The reason is because a pivotal shift has occurred in the public’s perception of tattoos. No longer are tattoos the sole proprietary earmarks of rough sailors, greasy bikers, or thuggish gang members.³ Tattoos, instead, are the adornment of suburban moms, coming-of-age markers for college students, personal testimonials of professionals’ wild days long past, and even life-long memorials to loved ones.⁴ In fact, the Pew Research Center conducted a survey, published in 2007, that showed that 36 percent of 18-25 year-olds have at least one tattoo, while an even higher percentage, 40 percent, of 26-40 year-olds have at least one as well.⁵ That means that two in every five Americans within this very vibrant and socially powerful age bracket have a tattoo. As the act of tattooing has become more pervasive within American society, tattoos have been used to promote everything from Goodyear’s Dunlop tires and Nike shoes to General Mills Fruit-Roll-Ups snacks.⁶ There is even a website called Leaseyourbody.com that will broker the prime real-estate of one’s skin with an advertiser for the purposes of promoting a product through the use of a tattoo.

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3. It has been noted by social anthropologist, Margo DeMello, “Terms such as ‘biker,’ ‘sailor,’ or ‘scratcher,’ are used in tattoo magazines and articles on tattooing to refer to certain working-class tattoo practices that are said to be out-moded and are differentiated from newer practices defined as ‘professional,’ or ‘fine art.’ Margo DeMello. *Bodies of Inscription: A Cultural History of the Modern Tattoo Community*. (Durham & London: Duke University Press, 2000) pp.5-6
 4. Thus, DeMello keenly observes, “the tattoo has been, in a sense, sanitized of its working class roots, in order to ensure that the tattoo is now fit for middle-class consumption.” [DeMello, *Bodies of Inscription*, p.4]
 5. Andrew Kohut, (director). “How Young People View Their Lives, Futures, and Politics: A Portrait of Generation Next.” (Washington D.C.: The Pew Research Center, 9 January 2007).
 6. Recently, Mattel has even understood the selling power of the tattoo as they began producing and marketing “Totally Stylin’ Tattoo Barbie,” who comes equipped with heart, star, and butterfly press-on tattoos to be affixed to Barbie wherever her owner wishes to place them. Vinnee Tong. “Got a Tattoo? It’s No Longer Taboo.” The *St. Louis Post Dispatch*, Business Section. (Associated Press: 29 November 2007). According to Tong, “Goodyear’s Dunlop tire unit has offered a set of free tires to anyone who will get the company’s flying-D logo tattooed on their body and 98 people have taken up the offer...General Mills has been selling Fruit-Roll-Ups with tattoo-shaped cutouts that let children make temporary tongue tattoos. Shoe maker Nike Inc. has employed celebrity tattoo artist Mister Cartoon to design six lines of limited-edition shoes.”

Clearly, these silent markers of rebellion have shifted to the boisterous mainstream. And, along with the rest of western society, Jews too have experienced and been part of this shift.

Yet, the Jew stops not simply to ask the question of should I get a tattoo or not. Rather a Jew pauses because engrained in every choice is a moment to either affirm or deny one's Jewish identity, and by extension Judaism's place in the world. Denial can come in many forms. It is not simply turning a blind eye to tradition; it can also be blindly accepting tradition. Because, whether it is a rabbi or the average Jew, Judaism is more than a solitary voice. It is a tapestry of a multitude of voices with varying positions woven together to present an understanding of the world, God and the Jew's place in that dynamic.

Therefore, in order to affirm Judaism in our response to the question, "should a Jew tattoo," we must – prior to our decision – pause to investigate the historical voice of Judaism, preserved in the literary discussions of our people: the Bible, early and late rabbinic texts, as well as from the positions of modern Jewish thinkers. The ideal end of this exploration is not necessarily the adoption of acceptance of the historical voice of Judaism. Rather, understanding one's reasons for either accepting or deviating from it is. A similar procedure may be applicable to people of other faiths, who too struggle for individualism under the pressure of regulated normative practices, motivated by the cultural impulse of conformity. For example, some denominations of Christianity as well

as Islam maintain a similar tension between individuals with tattoos and the tattoo taboos within their respective religious prescriptions.⁷

The scope of this thesis, however, will be limited to the Jewish perspective on tattoos and the act of tattooing, beginning with the Israelite interaction with tattooing practices of the ancient Near East (ANE) and ending with the perspective of tattooing within contemporary Jewish society. In many ways, the Jewish engagement with tattoos and the practice of tattooing echoes other traditions that define our people: that is, when ANE cultures and practices influence a statement codified in the Biblical text, which then is transmitted and evolved through rabbinic literature to finally arrive in our contemporary time when and where modern Jews wrestle with its acceptance or rejection.⁸ Therefore, the intention of this thesis is not to be a persuasive or a dissuasive piece regarding the decision whether one should or should not receive the body mark of a tattoo. Purely and most thoroughly, this thesis will provide the relevant information on the historical Jewish

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7. “Roman soldiers often had themselves tattooed until Constantine forbade it in C.E. 325 on the grounds that it disfigured what had been fashioned in God’s image. Despite Christian disapproval, (Pope Hadrian also decreed against it in C.E. 787 C.E.), tattooing survived among the Saxons...[and] the anthropologist Durham (1928) reported on the prevalence of tattooing on the hands of Catholic women in some Balkan areas.” [Armando R. Favazza. *Bodies Under Siege: Self-mutilation and Body Modification in Culture and Psychiatry*. (Baltimore: John Hopkins University Press, 1996) pp 151-152] “Shari’ah (Islamic law) warns against Muslah (disfiguring) of the body, as well as ‘unnecessary intrusion, alteration and defacement of Allah Taa’la’s creation.’” The Qur’an considers such alterations as inspired by (shaytaan) Satan, who “...will command them (his devotees) to change what Allah (Taa’la) has created...” (Qur’an: An-Nisa’: 119). [Islamic Times: 16 May 2006. www.islamictimes.co.uk]
8. Another example of this occurs with an aspect of kashrut: the prohibition from eating the meat of pigs. According to a lecture by Archeologist David Ilan, remains uncovered in the area of ancient Philistine demonstrate that the Philistines ate a lot pork, evident in the large amount of pig bones found there. However, in the hill country of ancient Israel, only a minimal number of pig bones were found. The archeological evidence demonstrates that instead of swine, the most likely source of meat for the Israelite diet came from sheep and goats. According to Dr. Ilan, pigs – who have large litters and develop rather quickly – are suitable for a people who travel frequently from place to place by sea, such as the Philistines. On the other hand, sheep and goats – which have smaller litters and take years to develop – are better suited for a more sedentary people, like the ancient Israelites. As this cultural difference is preserved in the Biblical texts, it acquires cultic significance. This religious significance is then expounded upon and developed through the rabbinic codes of the classic rabbinic period. It is from the positions maintained in these traditional texts that Modern Jews debate, wrestle with their modern implications. To accept or not to accept, this is the question.

engagement with tattoos, in order to aid the contemporary Jew in mitigating the tension between secular norms and Jewish traditional values. This exploration is not only of value for every Jew, but ultimately it is the way that we as Jews behave Jewishly.

Anthropological Background - Manipulating the Human Form:

We are and have always been obsessed with the human body. Whether it has been through pursuits of religion as we aspire to understand God through the human form and condition or through pursuits of science as we attempt to understand the natural changes which occur to and within the human corpus, no other landscape, such as that of a far off continent or planet, has captured our imagination like the landscape of the human body.⁹

Yet, not all changes occur naturally. Through another pursuit, that of the arts, humans have been able to express their obsession of the human form through paintings, sculptures, dance, clothing, etc. Through such artistic mediums, the human form is displayed and at times even visually transformed. One of the oldest examples of this obsession to contort the human form is from the Cosquer Cave located at Cape Morgiou, near Marseilles on the Mediterranean Sea. Approximately 25000 years before the Common Era (B.C.E.), 55 human hands were placed upon its walls. Some were drawn in the negative as stencils and some in the positive as hands coated with pigment were applied to the rock. What makes these images provocative is the fact that some of the digits upon these hand markings are missing or are shortened. Do these missing digits bear witness to mutilations, sacrificial rituals, or results of circulatory ailments? Evidence from skeletal remains, of the same period, indicates that these missing body parts were

9. These religious pursuits are rooted to the Biblical verse, Genesis 1:27, which states, "God created man in His image, in the image of God He created him."

not a result of amputation.¹⁰ Rather, “the most probable hypothesis is that the hands were drawn with bent fingers to represent a sign of greeting or a coded language.”¹¹

Throughout history, we have learned that to manipulate the human image is to elicit speculation about the intended purpose of such change. Whether correctly understood or not, these alterations convey information to the observer. Some, like the above, deposit the intended message upon some external medium: paper, stone, stage, etc. Still other methods of body modifications communicate the message upon the canvas of the human body.

Donning the body in fabrics is a standard method of temporarily altering the human form to convey meaning. This is evident even in the Bible as Moses was instructed to speak to the Israelite people and tell them:

“Make for themselves fringes on the corners of their garments throughout the ages; let them attach a cord of blue to the fringe at each corner. That shall be your fringe; look at it and recall all the commandments of the LORD and observe them, so that you do not follow your heart and eyes in your lustful urge.”¹²

It is clear from these verses that the fringe held meaning, which – when looked upon – could counter a heart’s passion or an eye’s “lustful urge.” The same could be said of all clothing, which conceals the human form from one perspective, but reveals it to a whole

10. “Although the fingers are incomplete, the thumb is always intact on these hands, which immediately eliminates the hypothesis of severe frostbite having resulted in the necrosis of the phalanxes.” In addition, “none of the skeletons of the Upper Paleolithic era found to date had hands with incomplete phalanxes.” [<http://www.culture.gouv.fr/culture/archeosm/en/fr-cosqu5.htm>]

11. “This was probably associated with hunting and various rituals, thus similar to the silent language once used by hunting peoples such as the Bushmen and the Australian Aborigines.” [<http://www.culture.gouv.fr/culture/archeosm/en/fr-cosqu5.htm>]

12. Numbers 15:38-39. *JPS Hebrew-English Tanakh*. (Philadelphia: Jewish Publication Society, 2000).

array of different interpretations from another. According to Victor Turner, who has conducted numerous field studies on body markings, “Clothing, headgear, ornaments, and regalia are, of course, salient agencies for the situational communication of personal and social identity, religious and secular values, and social status.”¹³

Even without fabric being contorted to fit the human form as clothing and costuming, cultures around the world have found ways to adorn the body with color to convey a broad range of information for both the community, as well as, for the marked individual. One such culture is the southeast Nubian community of the Sudan in Africa. In an interesting investigation, anthropologist James Faris points out, starting at the age of 12 until approximately 27, Nubian males will paint their bodies with individually inspired designs. Yet, community structures exist that apparently govern the colors which may be used by different age groups. According to Faris, these social conditions placed upon personal body modifications do not just accompany physiological change, but when the design is more elaborate and the color more varied to transform the human image it “signals changes in productive status and sport” for the individual within the community.¹⁴ The Nubian society represents just one community from around the world where the canvas of the human body has proven to be an effective medium to project information regarding one’s social status, sex, age, tribal and religious affiliation. Even more so, Terrance Turner observed, such temporary markings like body painting can also

13. Victor Turner. “Bodily Marks.” *The Encyclopedia of Religion*, Mircea Eliade, ed. Volume 2. (New York: Macmillan Publishing Co., 1987).

14. James Faris. “Significance of Differences in the Male and Female Personal Art of the Southeast Nuba.” *Marks of a Civilization*, edited by Arnold Rubin. (Los Angeles: Museum of Cultural History – University of California, 1988).

establish “a channel of communication *within* the individual, between the social and biological aspects of his personality.”¹⁵

These messages for the society, as well as for the individual are not just written in temporary ink. Throughout history, humans have found ways to make the message more permanent by indelibly marking the human skin. Such irreversible markings include: piercing, scarification, cicatrisation, branding, circumcision, and tattooing. Not with a paintbrush, but by means of cutting and piercing tools, such as knives, needles, or razors, are these surgical and quasi-surgical operations made on the canvas of the human body.

Like the case with the Nubian males, these acts are imbued with greater personal and communal meaning. Yet, unlike the case with the Nubian males, these more invasive acts of marking typically reinforce a perceived irreversible change in status or mode within one's society or culture. A clear example of this type of mark comes from Jewish heritage, where males at the age of eight days old undergo a ritual circumcision. This irreversible mark was intended to convey the message of a child's permanent inclusion within the Jewish community and the unbreakable covenant God has with the Jewish people.¹⁶ According to Jewish tradition, it is an act that sanctifies the covenant between God and the Jewish people ever since Abraham circumcised himself with his son Ishmael in the Book of Genesis.¹⁷

15. Terence S Turner. “Cosmetics: The Language of Bodily Adornment.” *Conformity and Conflict*, 3rd ed., editor James P. Spradley and David W. McCurdy. (Boston: 1977).

16. Once a male Jewish child is officially entered into the Jewish community by act of the circumcision, he is forever considered a Jew, (on condition that his mother was Jewish according to some segments of Jewish society).

17. Genesis 17:9-14, 24-26: “God further said to Abraham, ‘As for you, you and your offspring to come throughout the ages shall keep My covenant. Such shall be the covenant between Me and you and your offspring to follow which you shall keep: every male among you shall be circumcised. You shall circumcise the flesh of your foreskin, and that shall be the sign of the covenant

The human form clearly has captured our imagination, whether within the realms of religion, science, or art. Exploring and even initiating change, these pursuits attempt to derive meaning from the transformations that occur to the human form. Natural or artificial, temporary or permanent, all marks left by such change have within them the potential to convey information. According to Dr. Nili Fox, “Tattooing, especially, is one of the ways that humans, world-wide since earliest antiquity, have dressed their bodies to convey a broad range of cultural information.”¹⁸

Modifying the Human Form through Tattooing:

The portrait of the tattoo is, indeed, a work-in-progress – one that ultimately started many millennia ago. In the classic study on tattooing, Wilfrid Hambly suggests “tattooing by puncture was practiced before the commencement of dateable periods. The very ingenious invention of making implements, and introducing coloured matter,” Hambly regards “as a deliberate attempt of some thoughtful individual seeking consciously to impart a more enduring symbol of vitality than the afforded by mere surface painting.”¹⁹

Yet, somewhere in the move of history, critical pieces needed to fully expose the background of the tattoo have been lost. Nonetheless, from the pieces that remain viewers may get a glimpse at the complex nature of this ancient practice. One important part in

between Me and you. And throughout the generations, every male among you shall be circumcised at the age of eight days... Thus shall My covenant be marked in your flesh as an everlasting pact. And if any male who is uncircumcised fails to circumcise the flesh of his foreskin, that person shall be cut off from his kin; he has broken My covenant.’ ... Abraham was ninety-nine years old when he circumcised the flesh of his foreskin, and his son Ishmael was thirteen years old when he was circumcised in the flesh of his foreskin. Thus Abraham and his son Ishmael were circumcised on that very day.”

18. Nili Fox. “Body Marking: Tattoos, Brands, and Piercing,” in *Bodies on Parade: Studies on Dress and Identity in the Biblical World* (2008), forthcoming.

19. Wilfrid D. Hambly, *The History of Tattooing and Its Significance: With Some Account of Other Forms of Corporal Marking*. (London: H.F. & G. Witherby, 1925) p. 311

reconstructing the background of the “ingenious invention” of the tattoo is its marking implements, which were found and dated as early as 30,000 years before the Common Era.²⁰ Such archeological remains include sharpened bone needles associated with charcoal and red ochre. While this evidence is not conclusive, cultural anthropologists have long held the hypothesis that corporal markings, such as tattoos, originated with the use of these piercing or cutting implements and red ochre.²¹

The first to try their hand at reassembling the enormous and complex history of the tattoo were early European explorers. Stumbling upon the practice in their travels, explorers recorded their allure to the *tattau*.²² Captain James Cook, who was chief among these early explorers, observed that within the indigenous population of the Polynesian Islands the *tattau* was created by “inlaying the Colour of Black under the skins, in such a manner as to be indelible.”²³

Similar observations were recorded by explorers from the fifteenth through the eighteenth centuries of the Common Era (C.E.), noting a prevalence of tattoos throughout the world.²⁴ In addition to the Polynesian people, the tattoo was also common among the

20. John A. Rush. *Spiritual Tattoo: A Cultural History of Tattooing, Piercing, Scarification, Branding, and Implants*. (Berkeley, California: Frog Limited, 2005) p.3

21. The hypothesis is based on the idea that red marks were symbolic of revitalization since red is strongly associated with the fluid of life, blood. To support this claim it has been noted by anthropologists that various early humans used this color in their body markings: Cro-Magnon burials, prehistoric Red Paint People of Maine, etc. A full list can be found in Wilfrid Hambly’s cornerstone work on the history of tattooing. In this notable work, Hambly suggests, “There is a strong case for regarding the use of red ochre as the first stage of the body marking process.” [Hambly, *The History of Tattooing and Its Significance*, pp. 309-310, 320]

22. Tattau is the Tahitian word, meaning ‘to mark.’ From this word we derive our modern word, ‘tattoo.’ This word was first recorded in “western” literature by Captain James Cook in his journal from travels in the seventeenth century. [Turner, “Bodily Marks,” p. 270]

23. W.J.L. Wharton, *Captain Cook’s Journal during his First Voyage Round the World in H.M. Bark “Endeavour”: 1768-1771* (London: 1893) p. 93

24. Turner, “Bodily Marks.” p. 270

Maori in New Zealand as well as the native people of New Guinea, Melanesia, Micronesia, the Malay Archipelago, and the Malay Peninsula. Tattooing was also reported to be practiced on the mainland of Asia among certain peoples in India, Burma, and Tibet,²⁵ as well as on the other side of the world in some tribes of North and South America. Intrigued with such an apparent universal practice, the father of evolution, Charles Darwin theorized that the apparent long history of tattooing among so many diverse people and places may attest to “the close similarity of the mind of man, to whatever race he may belong.”²⁶

These and other speculations about the tattoo were entertained by many in the developing world as explorers brought back stories and examples of the practice. Yet, it was not until 1991 when the imaginative faculties of the human mind were sent into overdrive. It was the discovery of Ötzi, a 5000 year-old tattooed man uncovered in the mountains between Austria and Italy, which presented anthropologists with the oldest irrefutable evidence to substantiate the claim of tattoo’s ancient past. From the oldest tattooed skin on record, researchers have determined that in approximately 3200 B.C.E. Ötzi had 60 lines and crosses tattooed along his lower spine, right knee, and ankle joints.²⁷

We should not be surprised that scattered pieces of tattoo’s long legacy can be found so far back in the human record. After all, tattoos remain one of the most effective ways

25. Ancient mummies found in China’s Taklamakan Desert (ca. 1200 B.C.E.) preserve the evidence of incised marks in the skin. [Cate Lineberry, “Tattoos: The Ancient and Mysterious History.” *Smithsonian.com*. (1 January 2007) www.smithsonianmag.com/history-archaeology/10023606]

26. Charles Darwin, *Descent of Man*, part 3 chapter 19. (1871). www.infidels.org/library/historical/charles_darwin/ This passage was taken from Darwin’s journal, which he wrote in while aboard the HMS Beagle.

27. Sonia Zjawinski, “Tattoos: Forget the Hidden Butterfly. It’s Time for Full Sleeves.” *New York Magazine* (1 October 2007).

information can be transmitted.²⁸ Permanently incised into the skin, dark pigments fill more than the lower layers of the human epidermis. These pigments create symbols imbued with meaning, which then become permanent mobile forms of non-verbal communication.²⁹

Yet, what do these symbols mean? What abstract values are these concrete markings signifying? Were these symbols, like the ones found on the mummy Ötzi, used for personal or communal purposes? Did they serve some aesthetic, prophylactic, cultural or even sacramental function? Remarkable relics, like these, excite the imagination, but leave the mind grasping to ascertain their exact meaning and purpose. As Captain James Cook poignantly wrote in the 1700's, "...tattooing is a curious subject for speculation."³⁰

The ability to decipher these speculative symbols correctly is essentially the communicative process by which the tattooed individual shares with other members of the in-group.³¹ The in-group can be labeled as either a 'tattoo culture' or as a 'tattoo community.' Understanding the subtle difference between these two labels will be valuable in the ensuing discussion of the thesis.

28. In addition to the examples cited at the beginning of this chapter, the Pew Research Center study noted that among different forms of body modifications: tattooing, altering hair to untraditional colors, and body piercing, "tattoos are the most popular form of expression." [Andrew Kohut, "How Young People View Their Lives," 9 January 2007] This statement, however, may be misleading as the study made no indication for race variations. A conclusion in the historical research on tattooing, states, "tattooing has flourished most among relatively light-skinned peoples, while scarification and cicatrisation are mostly found among dark-skinned people, since raised scars and keloids are more easily seen as pattern elements than the darker pigments." [Turner, "Bodily Marks," p.270]

29. Like all symbols, tattoos are "a concrete indication of abstract values." [Raymond Firth. *Symbols: Private and Public*. (New York: Cornell University Press, 1973) p. 54]

30. Hambly, *The History of Tattooing*, p. 239.

31. Raymond Firth in his notable study on symbols, argues that the broad aim of such symbols "was not only to accept the concrete as representative of the abstract, but to use it as a key in two ways – to explain the concrete by reference to the abstract, the visible by the invisible; and to extract from the concrete its hidden meaning for an understanding of the abstract. [Firth, *Symbols*, p. 55]

A culture, defined broadly by Princeton University, is “a particular society at a particular time and place.”³² Or, more concisely, it is “the accumulated habits, attitudes, and beliefs of a group of people that define for them their general behavior and way of life.”³³ Therefore, like all cultures, a tattooing culture can broadly be defined as a group of people who co-exist in a relatively close proximity of time and space. Yet what makes a culture a tattoo culture is specifically where and when the tattoo and the act of tattooing facilitate at least one critical component of a society’s ability to function. These components may be and are not limited to: social affiliation, marital status, religious identity, sex, gender, or age.

The tattoo and the act of tattooing, within tattoo cultures, define not just an individual within the culture and the nature of his/her interaction with other members of the in-group. But, the specific design of the tattoo and/or the time and place of the act of tattooing may also define the in-group versus the out-group. A wonderful fictional illustration of this principle is contained in Dr. Seuss’ book, *The Sneetches*.

“Now, the Star-Belly Sneetches had bellies with stars. The Plain-Belly Sneetches had none upon thars. Those stars weren’t so big. They were really so small, you might think such a thing wouldn’t matter at all. But, because they had stars, all the Star-Belly Sneetches would brag, ‘We’re the best kind of Sneetch on the beaches.’ With their snoots in the air, they would sniff and they’d snort, ‘We’ll have nothing to do with the Plain-

32. <http://wordnetweb.princeton.edu/perl/webwn?s=culture>

33. On the U.S. Department of State website there is an on-line dictionary. The cited definition is from this dictionary. <http://usinfo.state.gov/products/pubs/geography/glossary.htm>

Belly sort!’ And whenever they met some, when they were out walking, they’d hike right on past them without even talking.”³⁴

Although all the Sneetches were of one species, the corporal mark of the star dictated social interactions between the in-group (those with stars) versus the out-group (those without stars). It is, therefore, imperative to fully grasp the dynamics of any tattoo culture to understand not just the tattoo, but the function and meaning the tattoo holds within its social context.

There is not much left of tattoo cultures in the developed Western world. The sub-cultures of merchant sailors, military members, gangs, and biker communities may be all that remains.³⁵ Such tattoo sub-cultures continue to use the tattoo to define social boundaries such as affiliation and cultural rites of initiation, passage, and hierarchy.

Taking the place of tattoo cultures within Western societies are tattoo communities. A tattoo community is merely a group of people, who may, but do not necessarily reside in the same time and place with each other and whose existence is not dependent upon one another. Nevertheless, these individuals are pulled together by the shared experience of the act of tattooing. Anthropologist, Margo DeMello, in her thorough work on the topic, expounds further on the defining characteristics of a tattoo community to “include those who actively embrace the notion of community and who pursue community oriented [tattoo] activities like attending tattoo shows.”³⁶ Other activities of a modern tattoo community may include subscriptions to tattoo magazines, working in a tattoo parlor,

34. Theodor Seuss Geisel. *The Sneetches and Other Stories*. (New York: Random House Pub., 1961) pp. 3-4

35. DeMello, *Bodies of Inscription*, p. 3 and Arthur Rubin. “Tattoo Renaissance.” *Marks of a Civilization : Artistic Transformation of the Human Body*. (Los Angeles: Museum of Cultural History – University of California, 1988) p. 236

36. DeMello, *Bodies of Inscription*, p. 3

associating with other modified individuals, etc. It should be noted, however, that being tattooed does not necessarily mean that the marked individual is a member within the tattoo community. Membership is conditional upon one's involvement in activities such as the ones mentioned above.

In today's more complex societies, these social tattoo networks and tattoo gatherings may be all that is left of communal tattoo rites in the developed Western world. Most modern societies have witnessed the loss of a tattoo's social function, thus eliminating tattoo cultures, as the act of tattooing has slipped almost exclusively into the personal realm of meaning and significance. For example, some women, who engage in tattooing,

“argue that modifying the body promotes symbolic rebellion, resistance, and self-transformation – that marking and transforming the body can symbolically ‘reclaim’ the body from its victimization and objectification in patriarchal culture.”³⁷

Noting such contemporary occurrences of the personal function of the modern tattoo, Dr. Nili Fox writes, “tattooing is a form of self-expression, often serving to differentiate individuals rather than classing them together.”³⁸ Thus this new tattoo appeal has bled from these peripheral sub-cultures of modern society into the mainstream, saturating the centrality of daily life.

Middle and upper class suburbia, once considered sterile and impenetrable from the influence of body modifications, began to see the proliferation of the tattoo within their ranks. It was not that precautions were not in place. It has been noted that many states,

37. Victoria Pitts. *In the Flesh: The Cultural Politics of Body Modification*. (New York: Palgrave MacMillan, 2003) p. 49

38. Nili Fox. “Body Marking.”

including Connecticut, Kansas, Massachusetts, Oklahoma, South Carolina, Vermont, and Virginia all banned the act of tattooing at some time between 1940 and 1960.³⁹ In Illinois, the legal age limit for getting a tattoo was raised from eighteen to twenty one in 1963.⁴⁰ Even as late as 1970, “Florida prohibited tattooing except under medical supervision.”⁴¹ Some United States cities also initiated their own ban: Detroit, Little Rock, Albuquerque, and New York City, just to name a few.⁴² It is unclear to what degree the law enforcement officials executed these prohibitions. The late Dr. Arnold Rubin, who explored the evolution of modern tattoos, speculates that such enforcement tended to be sporadic and desultory in most cases, thereby pushing tattooing towards its early modus operandi in the U.S. as clandestine.

Just as some parts of the United States closed their doors to tattooing, other areas, such as the metropolises of northern and southern California, as well as, Hawaii and the Pacific Northwest welcomed them, becoming inundated with tattoo artists as early as 1950. According to Rubin’s analysis, “this shift was probably a response to the population expansion and prosperity brought on by military and defense/industrial growth along the West Coast during and after World War II and the Korean War.” Additionally, Rubin acknowledges that the “California lifestyle” was more conducive for tattooing than other areas of the United States.

Not to underestimate the strength of these societal and economic factors, but had it not been for two seminal tattooists amidst this influx, the tattoo may have never been brought

39. Rubin, “Tattoo Renaissance,” pp. 233-262

40. *Ibid.*, p. 236

41. *Ibid.*, p. 236

42. *Ibid.*

out of the shadows and into the light of conventional society. Samuel M. Steward, better known as “Phil Sparrow” in the tattooing community, and Norman Keith Collins, a.k.a. “Sailor Jerry,” are credited as launching the medium of the tattoo into previously uncharted orbits within the American lifestyle. Sparrow initiated an entirely original approach to tattooing and his clientele, while Sailor Jerry revolutionized the medium of the tattoo in color, as well as, in the character of the designs. It was Sailor Jerry, above all others, who “helped professionalize the image of the tattoo by advocating sterile procedures and improve hygiene.”⁴³

Through their innovations, the tattoo slowly began to filter into areas once bereft of such forms of body alterations. Starting on the coast, the contemporary tattoo parlor made its way inward to the Midwest, permeating first the urban cities then seeping outward to suburbia and eventual reaching the rural landscape. Anthropologists have coined this shift of the tattoo from the periphery to the mainstream of conventional society as the “Tattoo Renaissance.”⁴⁴ It is a period of time that “celebrates tattoos as spiritual, poetic, and self-empowering.”⁴⁵ Or in the words of Rubin, “The Tattoo Renaissance, then, is another reflection of the end of the idea of America as a melting pot,” for a tattoo functions less communally and more individually as the marked person asserts his/her uniqueness under the pressure of society’s attempt at homogeneity.⁴⁶

The Pew Research center’s results support the claim of tattoos growing *modus operandi* as a mark of personal adornment. According to the report, “Generation Nexters are not

43. *Ibid.*

44. *Ibid.*, pp. 233-262.

45. DeMello, *Bodies of Inscription*, p. 3

46. Rubin, “Tattoo Renaissance,” p. 255

afraid to express themselves through their appearance. About half of them (54%) have either gotten a tattoo, dyed their hair an untraditional color, or had a body piercing in a place other than their ear lobe. Among those three, tattoos are the most popular form of [self] expression.”⁴⁷

For the Jew in America, self-expression is certainly a, if not, *the* major motive in connecting to Judaism and making “Jewish” choices in the 21st century. According to Hasia Diner, who conducted a thorough study on *The Jews of the United States, 1654-2000*:

“The choices these – and indeed most – Jews made involved highly personal and idiosyncratic concerns. Jewish women, along with the men, mostly do not feel bound to operate within conventional and inherited institutions. They do not feel compelled to behave as their parents or grandparents did. In a postmodern age, with its intense focus on personal choice, they look for ways and places to function as Jews. The solutions they produce do not necessarily reflect the weight of tradition or the continuity of past practice. By the beginning of the twenty-first century, on some level all American Jews, not just the growing number of converts, had become Jews by choice.”⁴⁸

Although there is – as of yet – no concrete data as to the exact number, what is clear is that Jews, along the rest of American society, have and continue to assert individuality

47. Andrew Kohut, (director). “How Young People View Their Lives, Futures, and Politics: A Portrait of Generation Next.” (Washington D.C.: The Pew Research Center, 9 January 2007).

48. Hasia R. Diner. *The Jews of the United States, 1654-2000*. (Berkeley, Los Angeles, & London: University of California Press, 2004) p. 358

through the choice of marking the body with a tattoo. Yet, unlike some Americans, in this choice the Jew confronts a challenge. In essence, it is a challenge which has faced the Jewish people from earliest times. What can the individual Jew do when normative secular practices knock on the door of his/her traditional values? Does the Jew ignore the knock, pretending he/she is not at home in this society? Or, will the Jew stop and see this moment of choice as an opportunity to mitigate this confrontation of secular norms with the long-standing traditions of the Jewish people?

Chapter Outline of Thesis:

This thesis attempts to aid the contemporary Jew in mitigating the tension between secular norms and Jewish traditional values by revealing the picture of Jewish engagement with tattooing. Again, it is not the intention of the thesis to be a persuasive or dissuasive piece regarding one's decision. Rather, the thesis aspires to present, as thoroughly as possible, the history of Jewish engagement with tattooing: starting from the ANE and the Bible, through the classic and modern rabbinic periods, to Jews who tattoo in the 21st century. Through understanding how Jews have dealt with the issue of tattooing throughout history, the modern Jew will be better equipped to deal with this and similar choices which pin one's Jewish religious values up against the trends of secular society.

Chapter one begins this intellectual assistance through a presentation of the background upon which the Biblical picture of corporal marks was made. Revealed in this chapter will be the surviving texts and archeological remains of tattooing within the neighboring cultures of ancient Israel: Mesopotamia, Egypt, and the Mediterranean. Through

examining the form and function of tattooing in these neighboring regions of the ancient world, the Biblical picture of corporal marks comes into greater focus. The reader of this chapter will learn the underlying motives for the corporal marks mentioned in the Books of Genesis, Isaiah, and Ezekiel, as well as the prohibition of Leviticus: “You shall not make gashes in your flesh for the dead, or incise writing [tattoos] on yourself: I am the LORD.”

By way of the Levitical prohibition, Jews continued to be engaged in the topic of tattooing into the classic, medieval, and pre-modern rabbinic periods (ca. 200 C.E. – 1700 C.E.). Chapter two, therefore, will explore the exegesis of this Biblical prohibition in all the classic rabbinic texts from the *Mishnah* and the *Tosefta* to the *Shulchan Aruch*. Within these texts, the authorities of the classic rabbinic period addressed the issue of tattooing in terms of application, content, intention, and purpose. By discussing these critical factors throughout the centuries, the Biblical prohibition was refined into a finely articulated set of rules intended to assist Jews of these periods and it could be argued, future periods, to engage halachically with the practice of tattooing.

Interestingly, it does not appear that tattooing ever posed a substantive threat to rabbinic sensitivities and communal Jewish values until the modern period. Faced with an ever increasing amount of Jews being tattooed, as well as innovations in the practice, it became apparent that the traditional language of the prohibition had to be revisited by modern rabbinic authorities, known as *poskim*. Chapter three will analyze the modern rabbinic positions on tattooing in the responsa of the three major movements of American Judaism: Orthodox, Conservative, and Reform. From these varied Jewish perspectives, multiple issues regarding the modern tattoo will be addressed, ranging from semi-

permanent cosmetic tattooing and laying *tefillin* on a tattoo of a devil to a tattooed areola on a reconstructed breast and the controversial issue of burial of a tattooed Jew. Some of these contemporary circumstances will be addressed through an expansion of the rules of law developed by the classic rabbinic authorities. At other times, the rules of law were deemed limited, leaving modern rabbinic authorities no choice but to rely upon traditional principles to ensure the prohibition was still applicable to modernity.

Nevertheless, the modern Jew continues to make the choice to be tattooed. Therefore, in the final chapter of the thesis, testimonials of tattooed Jews will be presented along with a picture of their tattoos. From their perspective, the thesis aspires to present a more authentic look at the practice of tattooing, revealing contemporary motives, messages, and challenges between Jewish traditional values and modern trends.

To date, there has been no extensive study of tattooing and Judaism that considers the influence of ancient Near Eastern cultures on the Biblical prohibition, nor has there been a comprehensive exploration of the Jewish literature from the ancient sages to contemporary scholarship related to this subject. Aside from brief articles presented in newspapers and magazines, such as *Heeb*, *B'nai Brith*, *J-Vibe*, *Moment*, and *Babaganewz* this work of scholarship will be the first of its kind to present an in-depth and thorough perspective on tattooing through the eyes of Judaism.⁴⁹

49. Oceana Callum. "Jewess Tattoos." *Heeb Magazine: The New Jew Review*, No. 5. (New York: Heeb Magazine, Inc., Winter 2004) p. 13; Marcie Somers. "The Illustrated Man: Miami Ink's Ami James." *Heeb Magazine: The Chosen Issue*, No. 14. (New York: Heeb Magazine, Inc., Fall 2007) p. 18; Debra Cohen and Richard Greenberg. "Uncovering the Un-Movement." *B'nai Brith Magazine: The New Jew Making A Mark on American Judaism*. (Fall 2005); Jacquie Boaz. "Tattoos on Jews." *J-Vibe: The New Magazine for Jewish Teens*, Vol. 1, No. 3 (April/May 2005); Shaun Raviv, "Marked for Life: Jews and Tattoos." *Moment*. (June 2006); Mark H. Levine. "To Tattoo or Not to Tattoo." *Babaganewz*. Babaganewz.com: Adar One, 5768 (2007). Babaganewz is an educational classroom magazine, web site, book club and teachers' guide for Jewish middle school students in

More than focusing on the appearance of this cultural phenomenon within the Jewish community, the research of this thesis will address the practice of tattooing in the light of our traditions, considering not just the background from which this prohibition germinated, but as well the meaning and implications the act of tattooing has for contemporary Jewish life. This approach is of the utmost importance, for Jews have long addressed the complexities of contemporary life from the depth and breadth of tradition.

The function tradition, and for that matter *halachah*⁵⁰ (Jewish law), play in the life of contemporary Jews certainly varies among different movements within Judaism, as well as, among different Jewish individuals. Nevertheless, even if one were to decide not to follow these laws and traditions, the exploration into the history and *halachic* parameters on tattoos and tattooing, provided by this thesis, is certainly a Jewish process that we, as Jews, should initiate when confronted with the decision of whether or not to receive a tattoo mark. No longer will the *bubbemeises*,⁵¹ “you will not get buried in a Jewish cemetery,” play watch-guard over our faith and the decisions we make as we attempt to navigate our lives within the modern world. In its stead, shall stand a firm platform of

congregational schools and Hebrew day schools, featuring news, stories, articles, activities, puzzles, games, contests and lesson plans.

50. A traditional Jew is not autonomous. To be a traditional Jew is to be part of a community. It is a membership defined and a relationship expressed through *halachah*, the invested authority of the community and the only place where statements about the traditions of the community, regarding both its communal identity (religious practices and social interactions), as well as the identity of its members (represented as prescribed normative practices) are contained. This dual function between establishing communal as well as individual practices raises a certain tension for the modern Jew between accepting community authority and maintaining individual autonomy. That is to say that a modern Jew may question how can such personal matters, as one's private body, become the privy of another. Yet, in the words of Dr. Mark Washofsky, even “the modern Jew, to the extent that s/he is serious about questions of “authenticity” in Jewish life and practice, also understands that “tradition” and “community” are indispensable concepts... [and] may not be able to assert ‘it's nobody's business if I do...’ without feeling some sort of conflict. Additionally, the modern Jew understands that engrained within *halachah* are certain cultural biases, brought in by both the environment of its composition as well as by the theology of its composers. Therefore, the modern Jew is suspicious of the assumed eternal role of *halachic* authority over contemporary norms of communal and certainly individual behavior.

51. Yiddish idiom for “a mother's/grandmother's tale.” Also could be spelled: *bubbemeisch*.

resolute knowledge, reinforced by the wisdom of previous generations who have linked us in the unbreakable chain of knowledge and tradition, which is presented in the thesis, Full Exposure: The Revealing Picture of Jewish Engagement with Tattooing.